

September 5, 2025. No appearance is necessary.

7. 9:00 AM CASE NUMBER: C24-01290
CASE NAME: DEBRA JENKINS VS. ESTATE OF BRANDON COMPTON
***HEARING ON MINOR'S COMPROMISE RE: JACHEL ESTELLA NOLEN**

FILED BY: JENKINS, DEBRA

TENTATIVE RULING:

The Amended Proposed Order Granting Petition for Minor's Compromise for Minor for Jachel Nolen filed on September 5, 2025 is **granted**. The Court will execute the proposed Amended Order Approving Minor's Compromise and Amended Proposed Order to Deposit Funds lodged on September 5, 2025. No appearance is necessary.

8. 9:00 AM CASE NUMBER: C24-01290
CASE NAME: DEBRA JENKINS VS. ESTATE OF BRANDON COMPTON
***HEARING ON MINOR'S COMPROMISE RE: JACOB KENNETH KALEEK NOLEN**

FILED BY: JENKINS, DEBRA

TENTATIVE RULING:

The Amended Proposed Order Granting Petition for Minor's Compromise for Minor for Jacob Kenneth Kaleek Nolen filed on September 5, 2025 is **granted**. The Court will execute the proposed Amended Order Approving Minor's Compromise and Amended Proposed Order to Deposit Funds lodged on September 5, 2025. No appearance is necessary.

9. 9:00 AM CASE NUMBER: C24-02203
CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT FROM: UNITED STATES FIRE INSURANCE COMPANY
FILED BY: UNITED STATES FIRE INSURANCE COMPANY

TENTATIVE RULING:

Summary

This tentative ruling applies to lines 9 and 10. Defendant United States Fire Insurance Company's Motion to Strike the Second Amended Complaint is **granted**. Defendant United States Fire Insurance Company's Demurrer to the Second Amended Complaint is **sustained** without leave to amend.

Background

Plaintiff Dr. Karen Coleman, appearing in *propria persona*, alleges she was attending a Community Baby Shower event on August 27, 2022 at John Buckley Square in Pittsburg when she tripped and fell on a tablecloth and landed on her knee. She alleges the event was organized and operated by Dr. Monique Sims.

However, until recently, the only defendant named in the initial action is U.S. Fire Insurance Company ("Defendant" or "U.S. Fire"), which provided an insurance policy for the event with Dr. Monique Sims as insured. Plaintiff's first amended complaint ("FAC") alleges four causes of action, three causes of action labeled as "general negligence" and one cause of action for premises liability. The Court sustained Defendant's demurrer to the complaint with leave to amended on August 6, 2025.

On August 15, 2025, Plaintiff filed a Second Amended Complaint against U.S. Fire, naming other

Defendants including Crum & Forster, Sports Recreation Providers Purchasing Group, Zain Jeewanjee Insurance Agency, Monique Sims, the City of Pittsburg and Does 1-50, alleging the following causes of action: (1) Negligence, (2) Negligence Supervision [sic] / Undertaking, (3) Negligence Claim Handling, (4) Breach of Contract and (5) Breach of Covenant. To date, only Defendant Jeewanjee has made an appearance in this case and has filed his own demurrer, which is calendared for hearing on March 25, 2026 at 9:00 a.m. in this Department.

On September 19, 2025, Defendant United States Fire Insurance Company ("Defendant" or "US Fire") filed a Motion to Strike Plaintiff Karen Coleman's ("Plaintiff") Second Amended Complaint and a Demurrer to Plaintiff's Second Amended Complaint. The hearing date for both motions was noticed for January 14, 2026 in Department 16. Defendant served another Notice of Hearing on September 30, 2025 to Plaintiff confirming the hearing date for both motions was schedule for January 14, 2026.

Defendant's Demurrer and Motion to Stike were supported by Notice, Memorandum of Points and Authorities and the Declaration of Counsel Farid Zakaria. The demurrers to each cause of action are stated on the grounds that each of the five causes of action fail to state a cause of action pursuant to Cal. Code of Civ. Proc. § 430.40(e) and that each cause of action is uncertain pursuant to Cal. Code of Civ. Proc. § 430.10(f). Defendant's Motion to Strike is premised on Cal. Code of Civ. Proc. §§ 435 and 436 on the grounds that the Second Amended Complaint was not authorized by this Court. The declaration of Defendant's Counsel, Farid Zakaria, demonstrates compliance with his duty to meet and confer with Plaintiff. Ultimately, Defendant claims that Plaintiff cannot support each of her causes of action because Plaintiff did not initiate litigation against the insured, Dr. Monique Sims.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing is December 31, 2025. Plaintiff did not file a timely opposition to U.S. Fire's Demurrer and Motion to strike by December 31, 2025. The Court acknowledges that Plaintiff filed an *ex parte* application for an order continuing the hearing of these two matters on January 9, 2026. The Court has not granted this *ex parte* application and the application was lodged after an opposition was due.

Analyses

Self-Represented Litigant

The Court is aware that Plaintiff is proceeding without an attorney in her lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural

rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, “[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.’ [Citation.] When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.’” *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants. Indeed, Plaintiff demonstrates a level of sophistication in the manner in which she has filed pleadings and pursued relief on her own behalf since this case was initiated on August 20, 2024.

Failure to File a Timely Opposition

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Applied here, the Court finds that failure to timely oppose both the Motion to Strike and the Demurrer is a deemed to be her consent to the granting of both motions.

Ruling

Defendant United States Fire Insurance Company’s Motion to Strike is **granted**. Defendant United States Fire Insurance Company’s Demurrer to Plaintiff’s Seconded Amended Complaint is **sustained** without leave to amend. The Court will execute the two proposed orders lodged by Defendant U.S. Fire on September 19, 2025.

10. 9:00 AM CASE NUMBER: C24-02203
CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY
***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S 2ND AMENDED COMPLAINT**
FILED BY: UNITED STATES FIRE INSURANCE COMPANY
TENTATIVE RULING:
See Line 9.